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Slaughterhouse Rules: How AG-Gag Laws Erode the Constitution

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". . .the freedom of Speech may be taken away, and dumb and silent we may be led, like sheep, to the Slaughter."
- George Washington[1]

I. INTRODUCTION

The so-called "Ag-Gag" laws of Iowa and Utah, enacted in 2012,[2] erode the fundamentals of the Constitution while deviously protecting an industry that systematically breaks the law. These laws serve no compelling governmental interest and were enacted solely to shield the criminal activities of factory farms. First, this paper discusses the health risks inherent in factory farming, the government's shortcomings in regulating factory farming, and the free market's natural progression toward ag-gag legislation: laws that prohibit the undercover audio or visual recordings of agricultural establishments. Next, we examine ag-gag legislation's incompatibility with the Doctrine of Consumer Sovereignty and the fundamentals of contract law. Finally, we deal with the legalities of prosecuting the collection of information, dissemination of information, and the making of false statements during an application process. But first, in order to grasp how these laws work, it is necessary to understand how the factory farming industry operates.

II. FACTORY FARMING: ITS PRACTICES AND PROBLEMS

A. An Overview of the Current State of the Agricultural Industry

In the last thirtyyears, the number of pig farms in the United States has decreased by nearly ninety percent.[3] The anticipated implication of this statistic would be that the number of pigs would have decreased by that same proportion; but to the

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[1] George Washington, Address to Officers at Newburgh (Mar. 15, 1783) (transcript available at http://www.pbs.org/georgewashington/multimedia/arnn/newburgh.html) (last visited Oct. 9, 2013).

[2] *See infra* Part II. D (discussing Ag-Gag legislation as a response to "agricultural terrorism").

[3] Nat'l Res. Def. Council, *Facts about Pollution from Livestock Farms*, NAT'L RESOURCES DEF. COUNCIL, http://www.nrdc.org/water/pollution/ffarms.asp (last updated Feb. 21, 2013).

contrary, the number of pigs has stayed roughly the same.[4] This is due in large part to the word "farm" giving way to the new term, "agribusiness."[5] Agribusinesses are significantly different than the prototypical 'Charlotte's Web' family farm of the early twentieth century.[6] In 2007, the average cattle feedlot in Texas held 20,000 cattle, seven states averaged more than 10,000 pigs per factory farm, and five states had factory farms in which more than one million birds were slaughtered in each factory per year.[7]

Factory farms in the United States account for 99.94% of all chickens raised for meat, 96.57% of all chickens raised for eggs, 97.43% of all turkeys raised for meat, 95.41% of all pigs raised for meat, and 78.2% of all cows raised for beef.[8] In simple terms, if you ate meat today, it is a near virtual certainty that it came from a factory farm.[9] Factory farming is now a $140 billion a year industry,[10] slaughtering more than fifty billion land animals annually.[11] While this kind of agricultural operation booms, the family farmer is all but extinct.[12] More and more, everyday farmers "don't own the animals, can't determine their methods, aren't allowed to apply their wisdom, and have no alternative to high-speed industrial slaughter."[13]

The monopolization of any industry results in, by definition, powers that cannot be controlled by free-market economics.[14] The result of the monopolization of the farming industry by a small number of companies, apart from the astonishing environmental and public health impact, is the Descartian view that animals are merely machines without the capability to cognitively feel emotion or pain.[15] KFC, a corporation that buys nearly one billion chickens every year,[16] claims to be "committed to the well-being and humane treatment of chickens."[17] Yet at a slaughterhouse in West Virginia that KFC labeled "Supplier of the Year,"[18] workers

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[4] *Id.*

[5] Food & Water Watch, *Factory Farm Nation: How America Turned Its Livestock Farms Into Factories*, FOOD & WATER WATCH iv (2010), http://foodandwater.wpengine.netdna-cdn.com/wp-content/uploads/2010/11/FactoryFarmNation-web.pdf.

[6] *Id.*

[7] *Id.* at vi.

[8] *Food For Thought*, VOCAL VEGAN, http://www.vocalvegan.com/food-for-thought/ (last visited Oct. 9, 2013).

[9] *Id.*

[10] JONATHAN SAFRAN FOER, EATING ANIMALS 32 (Little, Brown & Co. 2009).

[11] *Id.* at 34.

[12] *Id.* at 256.

[13] *Id.*

[14] *Monopoly Definition*, MERRIAM-WEBSTER DICTIONARY, http://www.merriam-webster.com/dictionary/monopoly?show=0&t=1358544901 (last visited Oct. 9, 2013).

[15] RENE DESCARTES, DISCOURSE ON METHOD AND RELATED WRITINGS 40 (Desmond M. Clarke trans., Penguin Classics 1999) (1637) (stating "one could easily conceive of a machine that is made in such a way that it utters words, and even that it would utter some words in response to physical actions that cause a change in its organs"); *see also* FOER, *supra* note 10, at 108 (stating "animals should be viewed as machines").

[16] Daniel Zwedling, *A View to a Kill*, GOURMET (June 2007), http://www.gourmet.com/magazine/2000s/2007/06/aviewtoakill.

[17] FOER, *supra* note 10, at 37.

[18] PETA, *Undercover Investigations: Thousands of Chickens Tortured By KFC Supplier*, KENTUCKY FRIED CRUELTY, http://www.kentuckyfriedcruelty.com/u-pilgrimspride.asp (last visited Oct. 9, 2013).

were documented "tearing the heads off live birds, spitting tobacco into their eyes, spray-painting their faces, and violently stomping on them."[19] Separately, workers at a cattle slaughterhouse in California were caught on camera "ramming cows with forklifts, jabbing a cow in the eye and giving cows electric shocks."[20] Gail A. Eisnitz, in her book, *Slaughterhouse*, quoted one slaughterhouse worker as saying, "Down in the blood pit they say the smell of blood makes you aggressive . . . You get an attitude that if that hog kicks at me, I'm going to get even."[21] The worker went on to tell a story about how he once took a knife and "sliced off the end of a hog's nose, just like a piece of bologna" and then "ground" a handful of salt brine into its nose, seemingly for no legitimate reason at all.[22] In the last ten years alone, workers have been documented "using poles like baseball bats to hit baby turkeys, stomping on chickens to watch them 'pop,' beating lame pigs with metal pipes, and knowingly dismembering fully conscious cattle."[23] These examples are not isolated incidents: Temple Grandin, a federal auditor for the USDA, stated that when she first began to quantify the scale of abuses in the United States she witnessed "'deliberate acts of cruelty occurring on a regular basis'" at thirty-two percent of factory farms she surveyed during *announced* visits.[24] Imagine how many she would have found if she showed up *unannounced.*

B. Health Risks Inherent in Current Factory Farming Practices

These methods of handling and slaughtering farm animals create substantial health risks for the public. The term "downer" is used to describe an animal that collapses as a result of disease or poor health and is unable to stand up.[25] These sick cattle are legally not allowed to enter the market[26] given that they pose a "heightened risk of E. Coli, bovine spongiform, encephalopathy (mad cow disease), and salmonella."[27] Though there are no solid numbers regarding the number of downed cattle per year, estimates put the number around 200,000 per year.[28] Many of the

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[19] FOER, *supra* note 10, at 67.

[20] Jane Velez-Mitchell, *Slaughterhouse Video Shows USDA Needs to Clean Up Its Act*, EATOCRACY (Aug. 23, 2012, 2:00 PM), http://eatocracy.cnn.com/2012/08/23/opinion-jane-velez-mitchell-slaughterhouse-video-shows-usda-needs-to-clean-up-its-act/.

[21] FOER, *supra* note 10, at 249 (quoting GAIL A. EISNITZ, SLAUGHTERHOUSE: THE SHOCKING STORY OF GREED, NEGLECT, AND INHUMANE TREATMENT INSIDE THE U.S. MEAT INDUSTRY 166 (Prometheus Books 2006)).

[22] *Id.*

[23] FOER, *supra* note 10, at 248.

[24] FOER, *supra* note 10, at 251; *see also* Temple Grandin, *Commentary: Behavior of Slaughter Plant and Auction Employees Towards the Animals*, 1 ANTHROZOOS 205 (1988), *available at* http://www.grandin.com/references/behavior.employees.html (discussing abuse of animals by slaughter plant employees).

[25] FOER, *supra* note 10, at 56.

[26] FOER, *supra* note 10, at 223; *see also* Michael McFadden, *A Farm Forward Report: Exposing Ag-Gag*, FARM FORWARD 2 (July 2012), https://www.farmforward.com/papers/Ag-Gag%20White%20Paper.pdf (stating "the USDA has called [downer cattle] 'unfit for human food'").

[27] McFadden, *supra* note 26, at 2 (citing James R. Healey & Julie Schmit, *USDA Orders Largest Beef Recall: 143.3 Million Pounds*, USA TODAY, Feb. 18, 2008, http://www.usatoday.com/money/industries/food/2008-02-17-slaughterhouse-recall_N.htm).

[28] Foer, *supra* note 10, at 56 (citing Don Hansen & Victoria Bridges, *A Survey Description of Down-Cows and Cows with Progressive or Non-progressive Neurological Signs Compatible with a TSE from Veterinary-Client Herds in 38 States*, 33 BOVINE PRACTITIONER 179-87 (May 1999)).

cages for chickens, turkeys, and pigs are laden with ammonia, causing "painful skin and respiratory problems."[29] Sick poultry are forced to breathe air from oxygen-deficient sheds full of pathogenic microbes, carbon dioxide, methane, hydrogen sulfide, excretory ammonia fumes, and lung destroying dust and dander.[30] The proliferation of six natural and artificial growth hormones in beef production poses "a potential risk to human health."[31] Hormone use across all farm species increases the growth rate of the animals: for example, in the past fifty years, chickens' daily growth rate has increased approximately 400% from twenty-five grams per day to 100 grams per day.[32] This increase in growth rate leads to crippling leg disorders and various diseases[33] so farmworkers use an overabundance of antibiotics to keep their product viable. This use of antibiotics "leads to the growth of bacteria that are resistant to the drugs' effects, endangering humans who become infected but cannot be treated with routine antibiotic therapy."[34] Many pigs are so confined that they develop wounds and pressure sores from their cages, facilitating the spread of disease across entire slaughterhouses.[35] In conditions like this, "[p]igs can become mixing pots for viruses to swap genes and mutate."[36] Because the "internal anatomy and physiology" of pigs is "very similar" to that of humans[37] and pigs share ninety-eight percent of human genes,[38] it is no surprise that giving ill-treated pigs an overabundance of antibiotics in an effort to counteract growth hormones produced

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[29] The Humane Soc'y of the U.S., *An HSUS Report: The Welfare of Animals in the Broiler Chicken Industry*, THE HUMANE SOC'Y OF THE U.S. 2, *available at* http://www.journeytoforever.org/farm_library/welfare_broiler.pdf (last visited Oct. 9, 2013).

[30] KAREN DAVIS, PRISONED CHICKENS, POISONED EGGS: AN INSIDE LOOK AT THE MODERN POULTRY INDUSTRY 96-98 (Book Publ'g Co. rev. ed. 2009).

[31] Grace Commc'ns Found., *Hormones*, SUSTAINABLE TABLE, http://www.gracelinks.org/258/hormones (last visited Oct. 9, 2013).

[32] FOER, *supra* note 10, at 295 n.130 (citing T.G. Knowles et al., *Leg Disorders in Broiler Chickens: Prevalence, Risk Factors and Prevention*, PLOS ONE (2008), *available at* http://www.plosone.org/article/info:doi/10.1371/journal.pone.0001545); *see also* Univ. of Ark. Div. of Agric., *Chickens*, JUST GROW IT http://web.archive.org/web/20050906075446/http://www.kidsarus.org/growit/raiseit/chickens.asp (last modified May 19, 2004) (stating "if you grew as fast as a chicken, you would weigh 349 pounds at age 2").

[33] FOER, *supra* note 10, at 296 n.130 (citing S.C. Kestin, et al, *Prevalence of Leg Weakness in Broiler Chickens and Its Relationship with Genotype*, VETERINARY RECORD 131, 190-194 (1992).

[34] *See* Gerdiner Harris, *U.S. Tightens Rules on Antibiotics Use for Livestock*, N.Y. TIMES Apr. 11, 2012, http://www.nytimes.com/2012/04/12/us/antibiotics-for-livestock-will-require-prescription-fda-says.html?_r=0 (stating "[a]t least two million people are sickened and an estimated 99,000 die every year from hospital-acquired infections, the majority of which result from such resistant strains. It is unknown how many of these illnesses and deaths result from agricultural uses of antibiotics, but about 80 percent of antibiotics sold in the United States are used in animals").

[35] *See* Kathleen Masterson, *Q&A: Where Did The Swine Flu Come From?*, NPR (Sept. 10, 2009), http://www.npr.org/templates/story/story.php?storyId=112683634 (discussing the way in which diseases could spread from animal to human); *Caught in the Act! The Epidemic of Farm Animal Abuse*, COMPANIONAID'S BLOG, http://companionaid.wordpress.com/caught-in-the-act-the-epidemic-of-abuse-on-farm-animals/ (last visited Oct. 9, 2013) (listing various types of injuries pigs may receive from close confinement).

[36] Masterson, *supra* note 35.

[37] Jannine K. Patterson, Xin Gen Lei & Dennis D. Miller, *The Pig as an Experimental Model for Elucidating the Mechanisms Governing Dietary Influence on Mineral Absorption*, 233 EXPERIMENTAL BIOLOGICAL MED. 651, 652 (June 2008), *available at* http://ebm.rsmjournals.com/content/233/6/651.full.

[38] *Id.*

what was known as the "swine flu epidemic" of 2009-2010.[39]

C. The USDA, Its Shortcomings, and a Lack of Redressability for Animal Advocates

Despite these glaring facts and statistics, the average American will eat the equivalent of 21,000 entire animals in a lifetime, and factory farming supplies the vast majority of that demand.[40] With the massive amounts of food processed and sold every day in the United States, the government takes it upon itself to oversee the entire food industry. The United States Department of Agriculture (USDA), and more specifically the USDA's Food Safety and Inspection Service (FSIS), is responsible for "ensuring the safety and wholesomeness" of meat and poultry.[41] Roughly 7,800 FSIS inspectors visit 6,200 plants every year, conducting carcass inspections and verifying that appropriate food safety standards are met.[42]

More specifically, these inspectors are responsible for verifying compliance with the Federal Meat Inspection Act (FMIA),[43] enacted in 1906 as a response to Upton Sinclair's novel, *The Jungle*, that outlined the corrupt and repulsive conditions present in the early twentieth century's meatpacking industry.[44] Initially, the FMIA did not concern itself with the treatment of animals.[45] Rather, it merely focused on sanitation so as not to allow diseased animals to be processed for use as food.[46]

In 1958, Congress passed the Humane Methods of Slaughter Act of 1958[47] (HMSA of 1958), which states in part as follows:

No method of slaughtering or handling in connection with slaughtering shall be deemed to comply with the public policy of the United States unless it is humane. Either of the following two methods of slaughtering and handling are hereby found to be humane:

in the case of cattle, calves, horses, mules, sheep, swine, and other

livestock, all animals are rendered insensible to pain by a single blow or gunshot or an electrical, chemical, or other means that is rapid and effective, before being shackled, hoisted, thrown, case, or cut;[48]

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[39] *Id.*

[40] FOER, *supra* note 10, at 118; *see also* United Poultry Concerns, *Average and Total Numbers of Animals Who Died to Feed Americans in 2008*, UNITED POULTRY CONCERNS (Oct. 22, 2009), http://web.archive.org/web/20130821213717/http://www.upc-online.org/slaughter/2008americans.html.

[41] U.S. Dep't of Agric., *Slaughter Inspection 101*, FOOD SAFETY & INSPECTION SERVICE (last modified Aug.9, 2013), http://www.fsis.usda.gov/wps/portal/fsis/topics/food-safety-education/get-answers/food-safety-fact-sheets/production-and-inspection/slaughter-inspection-101/slaughter-inspection-101.

[42] *Id.*

[43] *Id.*

[44] Nat'l Meat Ass'n v. Harris, 132 S.Ct. 965, 968 (2012).

[45] *See* Federal Meat Inspection Act, Ch. 3913, 34 Stat. 674 (1906), *available at* http://www.fda.gov/RegulatoryInformation/Legislation/ucm148693.htm.

[46] *Id.*; It must be noted that the treatment of animals and the sanitation of livestock are not mutually exclusive.

[47] 7 U.S.C. § 1901.

[48] 7 U.S.C. § 1902.

This Act directed the Secretary of Agriculture to define what "humane methods" entailed and exactly to which species of livestock the humane methods applied.[49] The Humane Methods of Slaughter Act of 1978 (HMSA of 1978) amended the FMIA to include humane slaughter provisions regarding the handling of livestock, giving the USDA the power to "suspend mandatory inspection (in effect cutting off those slaughterhouses from the commercial marketplace and the consuming public), and . . . impose criminal penalties."[50] Only federally inspected plants can legally place their product into interstate commerce or foreign markets.[51]

But the USDA's methods of inspection have proven inefficient and ineffective.[52] Take one instance: In 2007, the Humane Society of the United States (Humane Society) sent a member to gain employment at the Westland/Hallmark Meat Packing Company (WLHM) and to record his findings on a hidden camera.[53] The Humane Society released the recorded video to a media outlet in February of 2008, which showed prodding, electrocuting, and shooting water hoses up the noses of sick cattle in an attempt to get them to walk to slaughter.[54] The Humane Society's President, Wayne Pacelle, described the workers' actions as "torture . . . right out of the waterboarding manual."[55] Much of the abuse was a result of workers' attempts to influence downer cattle to walk to slaughter.[56] Because of the risks of E.Coli and salmonella, among other diseases, that the workers' actions posed, the video resulted in the largest beef recall in U.S. history.[57] In total, 143 million pounds of beef were recalled,[58] 37 million of which had been provided to the Federal School Lunch Program.[59]

The most alarming fact surrounding this recall is that the USDA had inspectors present at WHLM "continuously," leading to the plant passing "17 separate food safety and humane handling audits in 2007."[60] Two of these audits occurred "during or very shortly after" the undercover video was recorded.[61] One of the audit reports, dated February 1, 2008, states:

I have reviewed the records and programs you have at your plant [which] are the best I have ever seen in any plant. . ..[sic] Your plant has passed numerous audits on

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[49] Levine v. Vilsack, 587 F.3d 986, 988 (9th Cir. 2009).

[50] *Id.* at 989.

[51] *Slaughter Inspection 101*, *supra* note 41.

[52] *See, e.g.*, McFadden, *supra* note 26 (describing abuse by workers at meat packing company where USDA inspectors were continuously present).

[53] McFadden, *supra* note 26, at 2.

[54] Brian Duignan, *Ag-Gag*, ENCYCLOPAEDIA BRITANNICA ADVOCACY FOR ANIMALS (Dec. 3, 2012) http://advocacy.britannica.com/blog/advocacy/2012/12/ag-gag/#more-11348.

[55] Velez Mitchell, *supra* note 20.

[56] *Id.*

[57] *Id.*

[58] David Brown, *USDA Orders Largest Meat Recall in U.S. History*, WASH. POST, Feb. 18, 2008, http://www.washingtonpost.com/wp-dyn/content/article/2008/02/17/AR2008021701530.html.

[59] Andrew Martin, *Largest Recall of Ground Beef is Ordered*, N.Y. TIMES, Feb. 18, 2008, http://www.nytimes.com/2008/02/18/business/18recall.html?adxnnl=1&adxnnlx=1303404634-53bv9+eAwR0szsFZUDf0zA.

[60] McFadden, *supra* note 26, at 2.

[61] *Id.*

humane handling of animals in this plant in the year of 2007 and has no failures, which you should to be [sic] very proud of.[62]

Two days after the release of the video, WHLM voluntarily suspended operations.[63] Three days later, the USDA officially suspended inspections of the plant, meaning WHLM was forced to stop production entirely.[64] Congressional hearings were held.[65] Congresswoman Rose DeLauro stated, "The USDA's mission is blurred," and highlighted the unnerving detail that it required an "outside group to unveil these terrible practices."[66]

Congresswoman DeLauro's determination that the USDA's mission is "blurred" may have something to do with a conflict of interest: the USDA's mission statement speaks first of "'expanding markets for agricultural products,' and only later of 'enhancing food safety.'"[67] This conflict of interest was outlined by a statement from The Central Valley Meat Company in California, another agribusiness, after a video surfaced in August of 2012 showing abuse similar to that at the WHLM slaughterhouse.[68] The statement read in part:

As a federally-inspected plant, all handling activities are also performed under the continuous inspection of USDA Food Safety and Inspection Service personnel who are empowered to take immediate action when they observe a problem. That is why these allegations are both disturbing and surprising.[69]

The WHLM scenario is only uncommon because of the massive size of the recall it entailed, but the documentation by hidden camera of abuse and lack of administrative control of the product is undeniably widespread. In February of 2009, an undercover video of an Iowa farm was released by the animal advocacy group, People for the Ethical Treatment of Animals (PETA), showing "workers hitting sows with metal rods, slamming piglets on a concrete floor and bragging about jamming rods up into sows' hindquarters."[70] In July of 2012, the animal advocacy group Mercy for Animals released an undercover video of a farm in Minnesota showing workers "slamming" piglets "headfirst on the ground and leaving them to slowly suffer and die" while leaving wounds and infections

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[62] *Id.*

[63] Robert W. Young, *Evaluation of FSIS Management Controls Over Pre-Slaughter Activities*, Audit Report 24601-7-KC at i,U.S. Dep't of Agric., Office of the Inspector Gen., (Nov. 2008), *available at* http://www.usda.gov/oig/webdocs/24601-07-KC.pdf.

[64] *Id.*

[65] Velez-Mitchell, *supra* note 20.

[66] *Id.*

[67] *Id.*

[68] Rachel Azevedo, *Central Valley Meat Responds to Alleged Abuse*, CBS47.TV (Aug. 21, 2012, 6:16 PM), http://web.archive.org/web/20120827083432/http://www.cbs47.tv/news/local/story/Central-Valley-Meat-responds-to-alleged-abuse/w7dRQ4RpCka-BTFe0JThWQ.cspx.

[69] *Id.*

[70] Anthony Devlin, *Graphic Abuse of Pigs Caught On Tape*, CBSNEWS (Feb. 11, 2009, 2:19 PM), http://www.cbsnews.com/2100-204_162-4454397.html; *See also* Mark Bittman, *Who Protects the Animals?*, N.Y. TIMES Apr. 26, 2011, http://opinionator.blogs.nytimes.com/2011/04/26/who-protects-the-animals/ (saying four farmers in this case pleaded guilty to "sexually abusing and beating pigs.").

"untreated."[71] In October of 2012, Mercy for Animals released another undercover video of an Idaho dairy farm, showing workers "kicking, shoving, and jumping on cows," while others "use[d] canes to beat [the cows] repeatedly."[72]

Even inspectors began to vent their frustrations with the inspection process.[73] In 2010, Stan Painter, Chairman of the National Joint Council of Food Inspection Local Unions, testified in front of the House Oversight and Government Reform Committee.[74] In his testimony, Painter stated that there are three basic, but imperative, problems with enforcement of the HMSA: "1) There is not a priority being made by the agency to enforce this statute 2) There is inadequate staffing to enforce all of the statutes and regulations for which we are responsible," and "3) There is confusion as to what latitude my members have to enforce the provisions of the HMSA."[75] Painter illustrated each problem with specific examples:

Not prioritizing enforcement of the HMSA:

When the [WHLM] scandal broke in 2008, the agency promised Congress that FSIS inspectors would receive additional training to enforce the provisions of the HMSA. All we received was an on-line training module that we could access on the internet to refresh our responsibilities under the Act. There was no follow-up by the agency management to emphasize the importance of enforcing the provisions of the Act.[76]

Inadequate staffing:

There are some slaughter facilities in this country that are processing cattle at 390 head per hour and hogs at 1106 head per hour. At that rate of production, we would need to increase the number of inspectors assigned to be able to enforce all of the laws and regulations adequately.[77]

Inspectors' ability to enforce provisions:

In early 2009, one of my members in Utah informed his supervisor that cattle were being abused in a slaughter facility holding pen. When he was rebuffed, my member took pictures of the cattle with his cell-phone camera and transmitted the

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[71] Mike Durkin & Tim Blotz, *Undercover Video at Minnesota Pig Farm Puts Pressure on Walmart*, MYFOX9.COM, Jul. 18, 2012, http://www.myfoxtwincities.com/story/19054225/undercover-video-pigs-supplying-costco-walmart.

[72] Jovana Lara, *Undercover Video: Cows Beaten at Dairy Farm*, ABC7 (Oct. 10, 2012), http://abclocal.go.com/kabc/story?section=news/state&id=8843035.

[73] *See, e.g., Continuing Problems in USDA's Enforcement of the Humane Methods of Slaughter Act: Hearing Before the Oversight & Gov't Reform Comm.*, 11th Cong. 2 (2010) (statement of Stanley Painter, Chairman, Nat'l Joint Council of Food Inspection Locals), *available at* http://oversight.house.gov/wp-content/uploads/2012/01/20100304Painter.pdf.

[74] *Id.*

[75] *Id.*

[76] *Id.*

[77] *Id.*

photographs to his wife. When the agency found out about what he had done, both he and his wife were told to destroy the pictures. My member tried to do the right thing, but he was admonished for taking action.[78]

In a further attempt to force a change of industrial practices, animal advocacy groups attempted suing individual corporations for their inhumane treatment of animals.[79] The vast majority of these attempts failed.[80] In *Levine v. Vilsack*, an animal advocacy group brought action against the USDA, challenging their exclusion of live poultry from the HMSA.[81] Levine argued that she had redressability because "'the number of chickens and other birds slaughtered inhumanely will be reduced, thus decreasing her risk of contracting food-borne illness."[82] The Ninth Circuit found for the USDA on two fronts: (1) Levine could not prove that she was personally harmed by the inhumane acts committed against poultry and (2) the HMSA of 1958 gave the Secretary of Agriculture the power to *independently* decide what "livestock" means.[83] Therefore, it is up to either Congress to change the law or the Secretary of Agriculture to include poultry in the "amenable species" category.[84] While the Secretary of Agriculture did not budge on the issue of including poultry, attempts were made in the 102nd through 104th Congresses to include poultry through legislative proposals, though no action was ever taken on these bills.[85]

E. Ag-Gag Legislation as a Response to "Agricultural Terrorism"

The lack of redressability led these determined advocacy groups to design and perform undercover operations within facilities across the country. Generally, in an average investigation, the group would have an agent apply for some kind of employment at a slaughterhouse. The "employee" would then gain employment and inconspicuously infiltrate the slaughterhouse with a hidden camera, record what she saw, and release the findings to media outlets. One such example of this was, of course, the WHLM investigation.[86]

The success of these clandestine investigations and exposés led corporations and legislators to attempt to find ways to protect their product, their profits, and their industry. But instead of attempting to effect change for better, safer products, the agribusinesses and lawmakers blatantly installed a method that hides the egregious actions of the farmworkers in question. The legislation installed is the topic of this paper.

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[78] *Id.*

[79] *See, e.g.*, Levine v. Vilsack, 587 F.3d 986 (9th Cir. 2009) (suing USDA for exclusion of live poultry from HMSA).

[80] *See id.* (finding for USDA).

[81] *Id.*

[82] *Id.* at 997 n.8.

[83] *Id.* at 988.

[84] 587 F.3d 986, 990 (9th Cir. 2009).

[85] GEOFFREY S. BECKER, CONG. RESEARCH SERV., RS22819, USDA MEAT INSPECTION AND THE HUMANE METHODS OF SLAUGHTER ACT (2008), *available at* http://assets.opencrs.com/rpts/RS22819_20080226.pdf.

[86] *See supra* Part II.C (discussing Humane Society's investigation of WHLM).

"Ag-Gag" laws, a term coined by Mark Bittman in a 2011 essay for *The New York Times* titled *Who Protects the Animals?*,[87] are a direct response to the increase in animal abuse video production. The laws are aimed at outlawing the use of any recording devices on farms without the direct consent of the owner or operator of that farm.[88] This legislation is specifically designed to "penalise [sic] investigative reporters who explore conditions on industrial agriculture operations."[89] Two such laws were successfully passed by elected legislatures in 2012: one in Iowa[90] and one in Utah[91]. The laws give local sheriffs "a long list of possible violations to charge" once it is proven that any recording was done without the animal facility owner's consent.[92]

The Iowa ag-gag law, H.F. 589, bars individuals from producing, possessing, or distributing a record of a "visual or audio experience occurring at [an] animal facility."[93] Any individual making "a false statement or representation" during the application process of employment at a farm in Iowa could be charged with a class D felony.[94] Iowa's H.F. 589 holds that any production of a recorded image or sound "without the owner's permission" is "animal facility interference,"[95] a crime that was previously nonexistent within the American legal system.[96] Violators of H.F. 589 face up to two years in prison. The law further states that any individual that does not report animal interference violations could also face imprisonment.[97] The similar Utah law, H.B. 187, makes it a crime for anyone to "knowingly or intentionally record" an image "or even a sound" on a factory farm without the owner's consent.[98] One Iowa Senator stated the bill would help protect farm animals from outsiders bringing in disease.[99] Meanwhile, a spokesman for the group Mercy for Animals has stated these laws created a "safe haven for animal abuse,"[100] and

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[87] Bittman, *supra* note 70.

[88] McFadden, *supra* note 26, at 1.

[89] S. E. Smith, *Ag Gag Laws: Violating Freedom of the Press and Limiting Consumer Access to Information*, THIS AIN'T LIVIN' (May 29, 2012, 10:43 AM), http://meloukhia.net/2012/05/ag_gag_laws_violating_freedom_of_the_press_and_limiting_consumer_access_to_information.html.

[90] 2012 Iowa Legis. Serv. Ch. 1005 H.F. 589 (West); Dan Flynn, *Iowa Approves Nation's First 'Ag-Gag' Law*, FOOD SAFETY NEWS, Mar. 1, 2012, http://www.foodsafetynews.com/2012/03/iowa-approves-nations-first-ag-gag-law/#.UlCq_hC0wmQ.

[91] Utah H.B. 187 (2012); Robert Gehrke, *Herbert Signs So Called 'Ag-Gag' Bill*, THE SALT LAKE TRIBUNE, Mar. 20, 2012, http://www.sltrib.com/sltrib/mobile/53758916-68/animal-bill-brown-farm.html.csp.

[92] Flynn, *supra* note 90.

[93] Will Potter, *Iowa and Florida Ag-Industry Bills Target Animal Cruelty Investigations*, GREEN IS THE NEW RED (Mar. 29, 2011), http://www.greenisthenewred.com/blog/iowa-florida-animal-agriculture-investigation-photography/4608/.

[94] 2012 Iowa Legis. Serv. Ch. 1005 H.F. 589 (West).

[95] *Id.*

[96] *Id.*

[97] *Id.*

[98] Laura Allen, *Utah's Ag-Gag Bill Signed into Law*, Animal Law Coalition, (Mar. 20, 2012), *available at* http://www.animallawcoalition.com/animals-and-politics/article/1944.

[99] Cindy Galli, *'Ag Gag' Bills Would Stop Undercover Animal Abuse Investigations*, ABCNews.com, Feb. 29, 2012, *available at* http://abcnews.go.com/Blotter/ag-gag-bills-stop-undercover-animal-abuse-investigations/story?id=15816805.

[100] Gehrke, *supra* note 91.

that the "misguided" laws enable industrial factory farms and allo[w] animal abuse."[101] Farm Forward, another animal advocacy group, has called this kind of legislation "the most concerted effort to date by industrialized farm animal agriculture to silence whistleblowers."[102]

Ag-gag legislation is a direct response to the increased dissemination of animal abuse videos.[103] These videos lead to public outcry, governmental sanctions, and loss of profits within the agricultural industry.[104] The Vice President for Public Policy for the Utah Farm Bureau has alleged that the secret recordings of animal abuse have done nothing to help the public, and that they in fact "have done more of a disservice than anything positive."[105] What disservice is being done, exactly, he does not say. In Iowa, State Senator John P. Kibbie was quoted as stating that ag-gag legislation is necessary because it would "make producers feel more comfortable."[106] More comfortable to do what, exactly, he does not say. What is certain, however, is that the legislation greatly inhibits animal advocates' abilities to protect helpless animals from abuse. These laws allow producers free reign over deciding their methods of production, which not only affects the well being of animals, but could also very easily effect the well being of the unbeknownst consumer. Although these proponents of ag-gag legislation have tried to paint these undercover videos as "publicity stunts meant to unfairly disparage the meat industry,"[107] it cannot be denied that undercover videos have had a significant impact in uncovering abuse that would otherwise stay hidden.

Yet, while these crimes are egregious, had Iowa enacted ag-gag legislation in the WHLM case or in any of the cases above, the undercover investigator would have been liable to prosecution and the farms could have avoided civil liability altogether. WHLM "would have been able to go to court claiming status as victims of 'animal facility tampering' for an 'amount equaling three times all the actual and consequential damages' against 'the person causing the damages.'"[108] This is not to mention that the fear of prosecution could have thwarted the undercover investigation entirely.[109]

III. THE IMMORALITY AND UNCONSTITUTIONALITY OF AG-GAG LEGISLATION

Ag-gag legislation violates two non-mutually exclusive foundations of American economics and American law: the Doctrine of Consumer Sovereignty and the First

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[101] 2012 Iowa Legis. Serv. Ch. 1005 H.F. 589 (West).

[102] McFadden, *supra* note 26 at 1.

[103] *Id.*at 4.

[104] *Id.* at 2.

[105] Gehrke, *supra* note 91.

[106] A. G. Sulzberger, *States Look to Ban Efforts to Reveal Farm Abuse*, N.Y. Times, (Apr. 13, 2011), http://www.nytimes.com/2011/04/14/us/14video.html.

[107] McFadden, *supra* note 26 at 2.

[108] Flynn, *supra* note 90.

[109] Cindy Galli & Brian Ross, *Turn Off That Camera! Animal Cruelty Exposes Being Blocked*, ABCNews.com, (Feb. 5, 2013), *available at* http://abcnews.go.com/Blotter/ag-gag-laws-animal-cruelty-exposes-blocked/story?id=18337864&singlePage=true (saying that the Humane Society currently does not perform undercover investigations in Iowa and Utah for fear of criminal prosecution).

Amendment of the United States Constitution.

A. Ag-Gag Legislation Violates the Doctrine of Consumer Sovereignty

Consumer sovereignty occurs when "consumers are able to make open, freely bargained, arms-length purchase decisions on the basis of a rational assessment of the costs and benefits of the particular product involved."[110] The Doctrine of Consumer Sovereignty is the cornerstone of free-market economics – but attempting to define consumer demand by measuring their purchasing habits without taking into account consumer knowledge of the product is "problematic."[111] Under the Theory of Revealed Preferences, "economists take as a given an individual's tastes and assume [he or] she acts rationally. . .best for [himself or] herself in light of her tastes."[112] Yet, a consumer cannot choose rationally when poorly educated, or purposefully misled, about the ramifications of a purchase.

Take the cigarette industry for example. As H.E. May and J.S. Wigand write in their essay "Right to Choose: Why Governments Should Compel the Tobacco Industry to Disclose Their Ingredients,"

> *"[o]ne of the fundamental duties of government is to implement policies that protect those fundamental interests that are necessary for an autonomous life. . .[C]rucial to autonomy is the interest to be informed so that one can make a rational choice from a number of competing alternatives. . .Tobacco control policies are necessary to protect both the interest to be free from harm, and the interest to be informed."*[113]

In essence, the profitability of the cigarette industry was originally based on a combination of misleading discourse and concealment of information. Uncovering these veiled facts and exposing them to the public would have changed the purchasing behaviors of many consumers. These deceptive business practices make for a market in which products are in a greater demand than they would be with full transparency, and thus create artificial and inefficient consumer habits that can be damaging to both the economy and overall public health. Free market principles state that "[t]he corrective function that is served by 'the competition of ideas' is best fulfilled when ideas are grounded in evidence that is as complete and as accessible to the ultimate decisionmakers in the body politic as possible."[114]

The public's interest in full and adequate information when purchasing goods is also recognized in Contract Law. For example: Greg agrees to buy a car from Melissa for a cross-country trip from New York to Los Angeles. Melissa knowingly

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[110] Neil W. Averitt, *The Meaning of "Unfair Acts or Practices" in Section 5 of the Federal Trade Commission Act*, 70 Geo.L.J. 225, 251 (1981).

[111] Allen E. Buchanan, *Ethics, Efficiency, and the Market* at 26-27, 38-39 (1985).

[112] Bailey Kuklin, *The Gaps Between the Fingers of the Invisible Hand*, 58 Brook. L. Rev. 835, 848 (Fall, 1992).

[113] H.E. May & J.S. Wigand, *The Right to Choose: Why Governments Should Compel the Tobacco Industry to Disclose Their Ingredients*, 6 Essays in Philosophy 2, Art. 11 (2005).

[114] Paul A. LeBel, *The Constitutional Interest in Getting the News: Toward a First Amendment Protection from Tort Liability for Surreptitious Newsgathering*, 4 Wm. & Mary Bill Rts. J. 1145, 1151 (quoting Gertz v. Robert Welch, Inc., 418 U.S. 323, 339 (1974)).

misrepresents the abilities of the car so much so that the car cannot even make it across the Lincoln Tunnel. Therefore, the original contract can be deemed void and Greg can get his money back. Even if Melissa did not intentionally misrepresent the value of the car, the contract would still be void.[115] Likewise, there is an implied contract that food be prepared properly. If it is not prepared properly, there is a legitimate argument to say that the contract between consumer and producer is invalid.

"Informed consumers are essential to the fair and efficient functioning of a free market economy."[116] But given the findings of the many recent undercover investigations, it is undisputable that the USDA is not doing its job. Apart from merely responding to separate, independent investigations by the private entities, the USDA is not efficiently preventing harmful meat production practices.

John Stuart Mill stated, "[t]he only purpose for which power can be rightfully exercised over any member of a civilized community, against his will, is to prevent harm to others. His own good, either physical or moral, is not a sufficient warrant. . .."[117] The ability of the government to force cigarette companies to list their products' actual ingredients is evidence enough that the public has a right to know what they are consuming. If the USDA cannot meet its stated goal of "ensuring that the handling and slaughter of livestock. . .[are] humane,"[118] and consumers buy foods under the notion that the food is safe, there exists a contractual inequality.

But even if the agricultural industry, the governments of Iowa and Utah, and the federal government of the United States are not concerned with the negative economic or health ramifications of an artificial "food demand bubble," the Ag-gag laws are unconstitutional as applied under the First Amendment of the United States Constitution.

B. Ag-Gag Legislation Violates the First Amendment

The First Amendment reads:

Congress shall make no law respecting an establishment of religion, or prohibiting the free exercise thereof; or abridging the freedom of speech, or of the press; or the right of the people peaceably to assemble, and to petition the Government for a redress of grievances.[119]

It must first be noted that neither Iowa's H.F. 589 nor Utah's H.B. 187 have severability clauses. Therefore, if a single piece of either law is found to be unconstitutional, that entire law can be deemed unconstitutional and thus unenforceable.[120]

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[115] *See* Restatement (Second) of Contracts §§ 163-164, (stating that avoidance can be obtained for innocent misrepresentations).

[116] 15 U.S.C. § 1451.

[117] John Stuart Mill, On Liberty 9, (Elizabeth Rapaport ed., Hackett 1978)

[118] *Humane Handlings & Slaughter of Livestock*, U.S. Dep't of Agric. Food Safety & Inspection Service Directive 6900.2, (Aug. 15, 2011).

[119] U.S. Const. amend. I.

[120] Abbe R. Gluck & Michael J. Graetz, *The Severability Doctrine*, N.Y.Times, (Mar. 22, 2012, *available at* http://www.nytimes.com/2012/03/23/opinion/the-severability-doctrine.html.

The "proper scope of application of legal rules that recognize criminal and civil liability can be determined only after a consideration of whether and how First Amendment interests could be threatened by their application."[121] It is essential to balance the necessity of the regulation with the right to freedom of speech and discourse before a legislature enacts a law that may abridge rights of speech.

In discerning whether a statute violates the First Amendment, the Court first examines "the fit between statutory ends and means."[122] In 2012, the Court explained this process in *U.S. v. Alvarez,*[123] stating:

> *. . .[The Court] has examined speech-related harms, justifications, and potential alternatives. In particular, it has taken account of the seriousness of the speech-related harm the provision will likely cause, the nature and importance of the provision's countervailing objectives, the extent to which the provision will tend to achieve those objectives, and whether there are other, less restrictive ways of doing so. Ultimately the Court has had to determine whether the statute works speech-related harm that is out of proportion to its justifications.*[124]

In other words, because speech is a fundamental right, laws prohibiting this right must be justifiable. Laws prohibiting fundamental rights "may be justified only by a 'compelling state interest.'"[125] Given that ag-gag laws restrict freedom of speech, they restrict the right to practice a fundamental freedom. Therefore, these laws must serve a compelling state interest in order to withstand strict scrutiny.[126]

There is no *legitimately* compelling interest to necessitate these laws. The prevention of oversight by the public, whether through the actual undercover investigations or the dissemination of their findings, is not rationally related to any legitimate governmental purpose whatsoever, let alone a compelling one. Even the 'intrusion' by undercover investigators causes no damage, no direct financial loss, or any loss of personal property or sense of privacy. Further, the undercover investigations being targeted by the ag-gag laws of Iowa and Utah do nothing to inhibit the actual operations of the factory in any way, shape, or form.

Theoretically, the industry is always in compliance and therefore there should never be violation. If not in compliance, they should have no constitutional right to object to public scrutiny that does not interfere with operations or infringe personal privacy rights.

However, the Supreme Court has not been so straightforward with the theoretics of compliance. Given the history of the Court, there are two kinds of acts by the

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[121] LeBel, *supra* note 114 at 1148.

[122] United States v. Alvarez, 132 S.Ct. 2537, 2540 (2012).

[123] *Id.*

[124] *Id.* at 2551.

[125] Roe v. Wade, 410 U.S. 113, 155 (1973).

[126] *See* Romer v. Evans, 517 U.S. 620, 632 (1996) (stating that "a law will be sustained if it can be said to advance a legitimate government interest"); *City of Boerne v. Flores*, 521 U.S. 507, 509 (1997) ("[r]equiring a State to demonstrate a compelling interest and show that it has adopted the least restrictive means of achieving that interest is the most demanding test known to constitutional law"); *Gonzales v. O Centro Espirita Beneficente Uniao do Vegetal*, 546 U.S. 418, 419 (2006) (holding that the government failed to demonstrate a compelling state interest in prohibiting the use of hoasca during religious services to overcome strict scrutiny).

news producing organizations at play: the right to *gather* news and the right to *distribute* news. Laws abridging the right to distribute news have consistently been more scrutinized by the Court than laws abridging the right to gather news. Since ag-gag laws punish both the gathering of information and the distributing of information relevant to the agricultural operations of factory farms within Iowa and Utah, it is necessary to analyze the constitutionality of the ag-gag laws' prohibition of both.

C. The Right to Gather News

The right to gather news is clearly a significant one with obvious limitations. The Court has stated that "it would be frivolous to assert . . . that the First Amendment, in the interest of securing news or otherwise, confers a license on either the reporter or his news sources to violate valid criminal laws."[127] A reporter may have a right to report the news, but she does not have a right to find news by breaking laws.[128] This speaks to the very heart of the argument regarding the undercover investigations being affected by this legislation: is governmental prohibition of these undercover investigations unconstitutional?

In *Desnick v. American Broadcasting Companies, Inc.* [129], the Seventh Circuit held that an ABC undercover investigation, in which undercover "test patients" with hidden cameras exposed Dr. Desnick using a rigged eyesight testing machine so as to persuade patients to undergo unnecessary expensive treatments, did not leave ABC liable for trespass, intrusion, or violation of federal and state wiretapping laws.[130] The *Desnick* court held that there was never any illegal trespass or intrusion because the activities of the office were not disrupted, there was "[not] any inva[sion of] a person's private space," there were no "embarrassingly intimate details of anybody's life" revealed, and there was "no theft."[131] Though the court held "there is no journalists' privilege to trespass,"[132] it likened the presence of ABC investigators to a restaurant critic or an individual posing as a possible suitor to buy a house simply to investigate home prices – certainly not the kind of encroachment that typically comes to mind when discussing trespass.[133] Furthermore, the court found that Dr. Desnick's privacy rights were not infringed because "no intimate personal facts concerning [the plaintiff]" were exposed and "the only conversations that were recorded were conversations with the testers themselves."[134] The court stated:

If the broadcast itself does not contain actionable defamation, and no established rights are invaded in the process of creating it, . . . then the target has no legal remedy even if the investigatory tactics used by the network are surreptitious,

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[127] Branzburg v. Hayes, 408 U.S. 665, 691 (1972).

[128] *Id.*

[129] 44 F.3d 1345 (7th Cir. 1995).

[130] *Id.* (though a breach of contract claim was deemed valid).

[131] *Id.* at 1352.

[132] *Id.* at 1351.

[133] *Id.* at 1351-1352.

[134] *Desnick*, 44 F.3d at 1353.

confrontational, unscrupulous, and ungentlemanly.[135]

The holding in *Desnick* suggests that ag-gag legislation, specifically the banning of gathering information from undercover investigations on farms, is unconstitutional because the investigators in these cases simply don't disrupt operations, intrude into personal lives, or steal.

Entering property under false pretenses is certainly a form of trespass, but it is not *illegal* trespass. The court in *Desnick* noted that consent procured by fraud can be effective consent, [136] using examples to illustrate the illogicality that a contrary holding would entail: without this consent:

"a browser [could not pretend] to be interested in merchandise that he could not afford to buy. Dinner guests would be trespassers if they were false friends who never would have been invited had the host known their true character, and a consumer who in an effort to bargain down an automobile dealer falsely claimed to be able to buy the same car elsewhere at a lower price would be a trespasser in the dealer's showroom."[137]

Consent to an entry of property "is often given legal effect even though the entrant has intentions that, if known to the owner of the property, would cause him, for perfectly understandable and generally ethical or at least lawful reasons, to revoke his consent."[138] Thus, while the undercover investigators might be asked to leave if their true intent is exposed, the investigators' physical presence is not necessarily an *illegal* trespass for purposes of constitutionality under *Desnick*.[139]

The argument that there is an infringement of privacy rights during these investigations, similarly, does not pass muster.[140] There cannot be an expectation of privacy in a slaughterhouse in which hundreds of individuals work every day, especially in an industry with an employee turnover rate upwards of 200 percent.[141] The Court has consistently held that infringement of privacy rights is impossible when an expectation of privacy is not anticipated[142], and slaughterhouses should be no exception to this rule. These investigations merely focus on the operations of the facilities and do not delve into personal conversations or stories about particular individuals' lives outside of the factory.[143]

Thus, because the investigators do not invade "any of the specific interests [relating to peaceable possession of land] the tort of trespass seeks to protect,"[144] the holding in *Desnick* would seem to imply that the consent given by the operators of

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[135] *Id.* at 1355.

[136] *Id.* at 1351.

[137] *Id.*

[138] *Id.*

[139] *Desnick,* 44 F.3d at 1351.

[140] *See* Amy J. *Fitzgerald, A Social History of the Slaughterhouse: From Inception to Contemporary Implications,* Human Ecology Review, Vol. 17, Nov. 1, 2010, *available at* http://www.humanecologyreview.org/pastissues/her171/Fitzgerald.pdf (last visited February 8, 2013).

[141] *See Id.* (noting that "rates as high as 200% in the first year of operation are not uncommon.")

[142] *See Katz v. U.S.*, 389 U.S. 347 (1967) (holding that "[e]ven if we assume the testers were acting as government agents, there was no fourth amendment violation because Northside had no reasonable expectation of privacy with regard to the areas searched and the items seized by the testers."

[143] *See Id.*

[144] *Desnick* at 1352-1353.

the slaughterhouses is valid.

However, it must be noted that the particulars of rules are not settled in this area of the law. While many courts would seem to support the holding of *Desnick* that misrepresentation can still lead to consent to enter,[145] it is quite clear that consent to enter can be invalid "if a wrongful act is done in excess of and in abuse of authorized entry."[146] Even the Restatement (Second) of Torts states, "[i]f the person consenting to the conduct of another . . . is induced [to consent] by the other's misrepresentation, the consent is not effective for the unexpected invasion or harm."[147] In *Food Lion, Inc. v. ABC*,[148] the Fourth Circuit ruled that an undercover ABC investigation revealing Food Lion's employees "repackaging and redating fish that had passed the expiration date, grinding expired beef with fresh beef, and applying barbeque sauce to chicken past its expiration date in order to mask the smell and sell it as fresh in the gourmet food section" constituted illegal trespass.[149] The *Food Lion* court distinguished the facts of their case from the facts of *Desnick*, stating that the Dr. Desnick's office was open to the public, whereas the filming locations of the undercover employees in the case at bar were "non-public," and thus constituted a "breach of duty of loyalty" to their employer, Food Lion.[150] The court deemed this filming "a wrongful act in excess of Dale and Barnett's authority to enter Food Lion's premises as employees."[151]

Yet the court in *Food Lion, Inc.* failed to define what "non-public" meant. Furthermore, the court relied solely on the case of *Miller v. Brooks*,[152] in which a woman had a private detective place a video camera in the ceiling of her ex-husband's bedroom, constituting a "wrongful act in excess of consent given to enter,"[153] to prove that videotaping "non-public areas of [Food Lion]" constitutes illegal trespass.[154] Not only did *Miller* involve a *private* setting inside of a *private* home, it also involved actual non-consented-to *physical alteration* of an individual's property through the installation of a camera.[155] The two cases are entirely dissimilar in their facts, and thus *Food Lion, Inc.* should have no bearing on the legality of entrance of undercover investigators, regardless of whether it is based on misrepresentation or not.[156]

Proponents of the ag-gag laws would point to *Houchins v. KQED*,[157] in which the Supreme Court held that a news agency had no right to document inmates and workers within a prison using filming, photography, and sound recordings, noting

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[145] *See* Martin v. Fidelity & Cas. Co. of N.Y., 421 So.2d 109, 111 (Ala. 1982) (holding that consent to enter is valid "even though consent may have been given under a mistake of facts, or procured by fraud").

[146] Miller v. Brooks, 472 S.E.2d 350, 355.

[147] RESTATEMENT (SECOND) OF TORTS, § 892B(2) (1965).

[148] 194 F.3d 505 (4th Cir. 1999).

[149] *Id.* at 511.

[150] *Id.* at 518.

[151] *Id.*

[152] 472 S.E.2d 350 (N.C. Ct. App. 1996).

[153] *Food Lion* at 518.

[154] *Id.* at 519.

[155] *See generally,* Miller v. Brooks, 472 S.E.2d 350.

[156] *Compare Id. with Food Lion*, 194 F.3d 505.

[157] 438 U.S. 1 (1978).

that "there is no First Amendment right of access to information."[158] But these facts are also entirely dissimilar to the facts present in an undercover investigation at a slaughterhouse for two simple reasons: (1) In *Houchins*, the NAACP was *denied* access to investigate reports of prisoner abuse in a *government-run* prison, thus constituting "government information or sources of information with the governments control,"[159] whereas factory farms are private entities, and (2) While prisoners are indeed protected by the Constitution's prohibition of cruel and unusual punishment, prisoners generally do not enjoy the full range of Constitutional rights, and thus have different rights than individuals outside of prison.[160]

Courts also recognize the importance of investigative journalism in regards to its many beneficial effects on society as a whole.[161] In *Northside Realty v. U.S.*,[162] testers posing as prospective home buyers obtained fair housing violations, the court held that "[t]he law should not denounce clever or imaginative public efforts to ensure compliance with the federal meatpacking laws."[163] The court further stated that "[u]ndercover work is a legitimate method of discovering violations of civil law as well as criminal law."[164]

Again, the lack of a severability clause in either law means that even if the Court finds the prohibition on new gatherings constitutional, that prohibition will still be overturned with a finding that the prohibition of information dissemination is unconstitutional.

D. The Right to Disseminate News

The right to disseminate information may depend on the legality of its method of collection. While the Supreme Court consistently holds that laws prohibiting the distribution of legally-gathered information are subject to a strict scrutiny standard,[165] the Court has been relatively inconsistent when it comes to whether or not the prohibition of illegally-gathered information is held to the same standard.[166] If the methods used by undercover investigators at slaughterhouses actually prove to be illegal, can the independent distribution by third party actors of the findings of these investigations be criminalized? If I am an Iowa resident, and an anonymous source sends me an illegally obtained video of the inside of a slaughterhouse, can I legally be prosecuted if I put the video on YouTube? The ag-gag laws say yes.[167] The First Amendment would seem to say otherwise.[168]

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[158] *Id.* at 11.

[159] *Id.* at 1.

[160] Hodges v. Stanley, 712 F.2d 34, 35 (2d Cir. 1983).

[161] See e.g. Northside Realty v. U.S, 605 F.2d 1438(5th Cir. 1979).

[162] *Id.* at 1454-55.

[163] *Id.*

[164] *Id.*

[165] *See* Landmark Communications, Inc. v. Virginia, 435 U.S. 829 (1978) (holding that news agencies were protected from criminal prosecution when publishing accurate information concerning confidential proceedings of the Virginia Judicial Inquiry and Review Commission); *Smith v. Daily Mail*, 443 U.S. 97 (1979) (holding a West Virginia statute forbidding news agencies from publishing accused juvenile's identity).

[166] *See supra* Part II.1.

[167] *See supra* Part I.D.

[168] U.S. Const. Amend. I.

In 1971, the Supreme Court decided *New York Times Co. v. United States*[169] (the Pentagon Papers case), in which a federal employee illegally stole confidential documents demonstrating that President Lyndon B. Johnson's administration "had systematically lied, not only to the public but also to Congress, about a subject of transcendent national interest and significance."[170] The stolen documents were received by the New York Times, which was halted by the Johnson Administration from publishing the documents' contents.[171] In his concurring opinion, Justice Douglas found that "[t]he dominant purpose of the First Amendment was to prohibit the widespread practice of governmental suppression of embarrassing information," and that therefore the federal court injunction hindered open debate regarding national issues "vital to our national health."[172] He further noted, "[a] debate of large proportions goes on in the nation over our posture in Vietnam," and "debate antedated the disclosure of the contents of the present documents. The latter are highly relevant to the debate in progress."[173] Justice Douglas went on to cite *Sullivan* by reinforcing the idea that on public questions, debate should not be hampered in any way, shape, or form.[174]

But later cases rebut this freedom of disseminating illegally obtained information presumption. The Court in *Cohen v. Cowles Media Co.*,[175] when holding that a breach of a promise of confidentiality given by a news organization to a source within a Minnesota gubernatorial campaign can result in punitive damages, stated that cases regarding the publication of truthful information require that information to be "lawfully required."[176]

More specifically related to ag-gag legislation, the majority in *Cohen* held that newsgathering agencies "may not with impunity break and enter an office or dwelling to gather news."[177] Yet it must be noted that the plaintiff in *Cohen* sought monetary damages rather than criminal sanctions, which could be at stake in an ag-gag trial.[178]

But it is vital to revisit the fundamentals of the First Amendment: what is the compelling governmental interest in prohibiting the dissemination of information that could potentially stop systematic abuse of animals and prevent disease and sickness across the general public? This is the epitome of a rhetorical question.

E. The Right to Lie During the Application/Interview Process

The Iowa law criminalizes "willfully" making a "false statement or representation as part of an application to be employed at the animal facility, if the person knows

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[169] 403 U.S. 713 (1971).

[170] Apple, R.W., *25 Years Later; Lessons From the Pentagon Papers*, N.Y. Times, June 23, 1996, available at http://www.nytimes.com/1996/06/23/weekinreview/25-years-later-lessons-from-the-pentagon-papers.html (last visited Oct. 6, 2013).

[171] *Id.*

[172] 403 U.S. at 723-724.

[173] *Id.* at 724.

[174] *Id.* citing New York Times v. Sullivan, 376 U.S. 254, 269-270 (1964).

[175] 501 U.S. 663 (1991).

[176] *Id.* at 671.

[177] *Id.* at 669-670.

[178] *Id.* at 666.

the statement to be false, and makes the statement with an intent to commit an act not authorized by the owner of the animal facility."[179] Although the Supreme Court has held that false factual statements "enjoy little First Amendment protection," those past statements "cannot be read to mean 'no protection at all.'"[180] And while all speech is protected under the First Amendment, because false factual statements are less likely than true statements to make a positive contribution on culture and societal philosophies, they are examined under an "intermediate scrutiny" approach.[181] This intermediate scrutiny approach "tak[es] into account the seriousness of the speech-related harm the provision will likely cause, the nature and importance of the provisions countervailing objectives, the extent to which the statute will tend to achieve those objectives, and whether there are other, less restrictive alternatives."[182]

But the First Amendment's guarantee of freedom of speech "does not extend only to categories of speech that survive an ad hoc balancing of relative social costs and benefits."[183] Rather, the courts apply the "most exacting scrutiny."[184] While the Iowa Farm Bureau's president has stated that he "do[esn't] know what greater good can ever come from lying,"[185] it is quite obvious that lying to gain access to a facility to take footage and create a catalyst for public outcry and governmental intervention certainly helps the greater good. There is no compelling state interest to stop aiding the greater good.

Given that the protection of an industry's prevalent unlawful acts is not a compelling state interest, Iowa's best argument may be that resume fraud is the equivalent of trespass and therefore the law is justified. However, the court in *Food Lion, Inc.* stated the following:

"Although the consent cases as a class are inconsistent, we have not found any case suggesting that consent based on a resume misrepresentation turns a successful job applicant into a trespasser the moment she enters the employer's premises to begin work. Moreover, if we turned successful resume fraud into trespass, we would not be protecting the interest underlying the tort of trespass – the ownership and peaceable possession of land."[186]

Even if we assume that there is somehow a compelling state interest in not allowing individuals with alternative intentions onto a farmer's property, establishing that the interest is compelling "is not to end the matter"[187]: there must also be a "direct causal link between the restriction imposed and the injury to be prevented"[188] along with the inability of government to enforce less restrictive

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[179] H.F. 589, § 717a.2B(1)(b) (2012).

[180] U.S. v. Alvarez, 132 S.Ct. 2537, 2541 (2012).

[181] U.S. v. Alvarez, 132 S.Ct. 2537, 2540-2541 (2012).

[182] *Id.*

[183] U.S. v. Stevens, 130 S.Ct. 1577, 1585 (2010).

[184] Turner Broad. Sys., Inc. v. FCC, 512 U.S. 622, 642 (1994).

[185] Cindy Galli and Brian Ross, *Turn Off That Camera! Animal Cruelty Exposes Being Blocked*, ABCNews.com, Feb. 5, 2013, *available at* http://abcnews.go.com/Blotter/ag-gag-laws-animal-cruelty-exposes-blocked/story?id=18337864&page=2 (last visited February 8, 2013).

[186] 194 F.3d 505, 518.

[187] U.S. v. Alvarez, 132 S.Ct. 2537, 2549 (2012).

[188] *Id.*

alternatives.[189] In *U.S. v. Alvarez*,[190] the Supreme Court held that although there was a compelling state interest in preventing an individual from lying about receiving the Congressional Medal of Honor, the Stolen Valor Act's[191] restriction on false statements was found to have no direct causal link to the public's notion of heroism.[192] The Court also found that a less restrictive alternative, identifying all Medal of Honor winners on an internet database, was sensibly feasible.[193] For these reasons, the Stolen Valor Act's restriction on false speech was held unconstitutional.[194]

The ag-gag legislation has no direct link to stopping any kind of illegal trespass. Similarly, there are less restrictive alternatives to the legislation: if the goal of the agricultural businesses is to hire loyal employees with no association to animal advocacy groups, why not simply perform more thorough background checks during the application phase? Why not increase the ability of supervisors to oversee employee activities? If a business has an efficient supervisory system in place, it should have no problem finding an employee violating company policies.

Another issue is how the determination in a trial would be made as to whether or not the act was indeed "willful," as required by the statute. What if the applicant left the interview and did not consider joining forces with an animal advocacy group to expose the crimes of his employer until she witnessed them for herself? How could the court possibly look into her state of mind?

IV. CONCLUSION

It would seem that the Justices of the Supreme Court in the Pentagon Papers case[195], when holding that illegally gathered information was legally allowed to be published, were swayed by James Madison's words during the adoption of the Constitution. Specifically, they were swayed by the following phrase from Madison's first draft:

"The people shall not be deprived or abridged of their right to speak, to write, or to publish their sentiments, and the freedom of the press, as one of the great bulwarks of liberty, shall be inviolable."[196]

In that same draft, which demonstrates the necessity for a guarantee of freedom of information and discourse, Madison continues:

"The civil rights of none shall be abridged. . .nor shall the full and equal rights of **conscience** be in any manner, or on any pretext, infringed" (emphasis added).[197]

Ag-gag legislation is an issue of *conscience*, which is a subject matter determined to be covered by the Constitution in the First Amendment by the very founder of the

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[189] *Id.* at 2540-2541.

[190] 132 S.Ct. 2537 (2012).

[191] 18 U.S.C. § 704.

[192] U.S. v. Alvarez, 132 S.Ct. 2537 at 2549.

[193] *Id.* at 2551.

[194] *Id.*

[195] *See supra* note 169.

[196] 403 U.S. 713, 716, *citing* 1 Annals of Cong. 434 (June 8, 1789).

[197] 1 Annals of Cong. 434 (June 8, 1789).

document.[198] Any hindrance of the stream of information must be proven to cause grave and irreparable danger, which the release of confidential videos showing where the public's food comes from does not cause. If anything, *not* allowing the distribution of these videos would cause grave and irreparable danger to the public. It would set a precedent that the sharing of newsworthy, non-life-threatening information can be limited while simultaneously injuring the public by not supplying it with what the agribusinesses are contractually obligated to give. The implied agreement between producer and consumer would be void if the consumer is not given what she is stipulated. If there is an argument to be made about the true compelling need for these laws, the legislatures that passed these laws have simply not asserted it. Even assuming that they have an argument in their back pocket, unless and until they have "clearly" stated their case, "the First Amendment commands that no injunction [of dissemination of information] may issue."[199] And even if this fictional 'compelling' purpose is expressly articulated, a compelling reason alone does not suffice.[200] There must be more. There must be a direct link between the restriction imposed and the injury to be prevented and no less restrictive alternatives.[201] Simply put, this is not the case here.

As of February, 2013, as a result of ag-gag legislation, animal advocacy groups have ceased all undercover investigations into animal cruelty in factory farms in Iowa and Utah.[202] The Humane Society, the organization responsible for triggering the largest meat recall in U.S. history in 2008, is now too afraid of criminal prosecution to conduct any undercover investigations in either state.[203] But as Justice Brandeis said, "If there be time to expose through discussion the falsehood and fallacies, to avert the evil by the processes of education, the remedy to be applied is more speech, not enforced silence."[204]

Thus, ag-gag legislation is not only unconstitutional, but is also morally reprehensible. The laws violate the First Amendment by infringing on a fundamental freedom without a compelling governmental interest while breaching the Doctrine of Consumer Sovereignty and the rudiments of contract law. Ultimately, these laws protect illegally operating corporations to the detriment of public health and safety.

Wayne Pacelle, president of the Humane Society, said of the legislation, "[y]ou will never stop the abuse if you shut down the cameras."[205] We, as a people, must turn the cameras back on.

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[198] *Id.*

[199] 403 U.S. 713, 727.

[200] U.S. v. Alvarez, 132 S.Ct. 2537, 2549 (2012).

[201] *Id.*

[202] Cindy Galli and Brian Ross, *Turn Off That Camera! Animal Cruelty Exposes Being Blocked*, ABCNews.com, Feb. 5, 2013, *available at* http://abcnews.go.com/Blotter/ag-gag-laws-animal-cruelty-exposes-blocked/story?id=18337864&page=2 (last visited Oct. 6, 2013).

[203] *Id.*

[204] Whitney v. California, 274 U.S. 357, 377 (1927).

[205] Cindy Galli and Brian Ross, *Turn Off That Camera! Animal Cruelty Exposes Being Blocked*, ABCNews.com, Feb. 5, 2013, *available at* http://abcnews.go.com/Blotter/ag-gag-laws-animal-cruelty-exposes-blocked/story?id=18337864&page=2 (last visited Oct. 6, 2013).